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Just before the final vote, one item was removed from AB418's list of substances banned in food

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As a near-year-round body, the California Legislature does things a little differently. Until the middle of September, it has adjourned most of its committees to put the Upper Chamber's focus almost entirely on floor action.

That is good news for the California Food Safety Act, which is on the State Senate's third reading calendar. Assembly Bill 418, introduced in February by Assemblymember Jesse Gabriel, D-San Fernando Valley, seeks to ban harmful food additives already prohibited from use in the European Union.

The bad news is that the law bans certain substances as food ingredients and has to compete for Senate floor time with nearly 300 Assembly bills also looking for final passage.

It needs only a favorable Senate vote and the Governor's sign-off to become law.

AB 418 has been amended on the Senate side, removing one substance from its banned food ingredient list. That substance is titanium dioxide, often added to foods to enhance white coloring or opacity.

To be added to food, titanium dioxide as an additive must achieve 99 percent purity. That still leaves room for small amounts of potential contaminants like lead, arsenic, or mercury. Chewing gum, candy, pastries, chocolates, coffee creamers, and cake decorations are among food items that may contain titanium.

The U.S. Food and Drug Administration considers titanium dioxide safe, and apparently, so does the California Senate in that it's been removed from the AB481's list of banned substances.

Four ingredients remain on the banned list. They are Brominated vegetable oil, Potassium bromate, Propylparaben, and Red dye No. 3.

The first-time fine for anyone found violating the new law is $5,000, with each subsequent violation going to $10,000. California's Attorney General and city and country attorneys are all empowered to bring charges under the statute.

By closing its marketplace to foods containing these substances, California will likely force many manufacturers to change recipes for foods distributed nationwide. This is not unlike the national change California is bringing about by closing its market to poultry and pork producers who do not meet its animal housing standards.

After Jan.1, 2027, under the bill, it will be illegal in California to manufacture, sell, deliver, distribute, hold, or offer for sale any food product for human consumption that contains any of the four products.

Two powerful consumer and environmental organizations, Consumer Reports and the Environmental Working Group have been helping move AB418 in Sacramento.

Senate summary of assembly bills

As of Sept. 7, 2023

Third Reading File AB 418 — Gabriel et al. An act relating to food.

2023

May 15 — Read the third time. Passed. Ordered to the Senate. (Ayes 54. Noes 12.)

May 16 — In Senate. Read the first time. To Com. on RLS. for assignment. May 24 — Referred to Coms. On Health and E.Q.

May 26 — From committee chair, with author's amendments: Amend and re-refer to committee. Read a second time, amend, and re-referred to Com. on Health.

Jun. 29 — From committee: Amend, pass as amended, and re-refer to Com. on E.Q. (Ayes 10. Noes 0.) (June 28).

Jul. 3 — Read the second time and amend. Re-referred to Com. on E.Q. Jul. 12—From committee: Do pass and re-refer to Com. on APPR. (Ayes5. Noes 1.)

(July 12) — Re-referred to Com. on APPR.

Aug. 14 — From committee: Be ordered to second reading according to Senate Rule 28.8.

Aug. 15 — Read the second time. Ordered the third reading.

Sep. 1 — Read the third time and amend. Ordered to second reading. Sep. 5—Read a second time. Ordered the third reading.

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